BYLAWS OF

NANAIMO AREA INDOOR TENNIS SOCIETY

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BYLAWS OF

NANAIMO AREA INDOOR TENNIS SOCIETY

Part 1 – Interpretation

1.1 Definitions

(1) In these Bylaws, unless the context otherwise requires:

(a) "**Act"** means the *Societies Act* of British Columbia as amended from time to time;

(b) "**Board**" or "**Board of Directors**" means the directors of the Society for the time being, acting as a body;

(c) **"Bylaws"** means these Bylaws as altered from time to time;

(d) "**Director**" means a director of the Society for the time being;

(e) "**general meeting**" includes an annual general meeting and a special general meeting;

(f) "**meeting"** includes an in-person meeting or a meeting by telephone conference call or in any manner by which all participants in the meeting can hear one another;

(g) "**Registered Address**" of a member means the member's address as recorded in the Register of Members; and

(h) **"special resolution"** means any of the following:

(i) a resolution passed at a general meeting by at least 2/3 of the votes cast by the Voting Members; or

(ii) a resolution consented to in writing by all of the Voting Members.

(i) **"Voting Member"** is a member as defined in Section 2.5(1)

(2) The definitions in the Act on the date these Bylaws become effective apply to these Bylaws.

(3) Words importing the singular include the plural and vice versa, and words importing a male person include a female person.

1.2 Headings

(1) The headings used in these Bylaws are for convenience of reference only and in no way define, limit, or enlarge the scope or meaning of the provisions of these Bylaws.

1.3 Conflict with Act or Regulations

(1) If there is a conflict between these Bylaws and the Act or the regulations under the Act, the Act or the regulations, as the case may be, shall prevail.

Part 2 – Members

2.1 Membership

(1) The members of the Society are the applicants for incorporation of the Society and those persons who subsequently become members in accordance with these Bylaws and, in either case, have not ceased to be members.

2.2 Application for Membership

(1) A person may apply to the Board for membership in the Society by mailing or delivering to the address or e-mail address of the Society a completed application for membership in the form designated by the Board from time to time, or if no form has been designated, by a request in writing.

(2) A person who has applied for membership pursuant to Section 2.2(1) becomes a member on the Board's acceptance of the application.

(3) The Board, in its sole discretion, can decide whether a person shall be accepted as a member.

2.3 Membership Dues

(1) The Directors may determine the lifetime or annual membership dues, if any.

(2) The Directors may waive, in whole or in part, membership dues for any member.

(3) The Directors may set different subscription or membership fees for different classes, or combination of classes, of members.

(4) Each person seeking membership must pay the required lifetime or annual membership fee and any other subscription or membership fee that may be set by the Directors from time to time.

2.4 Classes of Membership

(1) There shall be the following classes of members:

(a) Adult Member: is a person 18 years of age or older;

(b) Intermediate Member: is a person 16 years but not yet 18 years; and

(c) Junior Member: is a person under the age of 16 years.

2.5 Voting Rights

(1) All Adult Members and Intermediate Members of the Society who are members in good standing are voting members ("**Voting Members**") of the Society and will be entitled to receive notice of and to attend all general meetings of the Society.

(2) Each Voting Member present at a meeting of members is entitled to one vote.

(3) A Junior Member is not entitled to vote at annual or special general meetings.

2.6 Members' Obligations

(1) Every member must:

(a) uphold the Constitution of the Society and comply with these Bylaws; and

(b) inform the Membership Director, in writing, of any changes to their address, e-mail address (if any), and fax number (if any) for the purpose of receiving notices from the Society.

2.7 Members in Good Standing

(1) All members are in good standing except a member who has failed to pay his or her current lifetime or annual membership fee, or any other subscription or debt due and owing by the member to the Society, and the member is not in good standing so long as the debt remains unpaid.

(2) Unless the Directors otherwise decide, a member who has not paid his or her current lifetime or annual membership fee may at any time bring himself into good standing by paying his membership fee even though it is past due.

(3) A Voting Member who is not in good standing:

(a) may not vote at a general meeting; and

(b) is deemed not to be a Voting Member for the purpose of consenting to a resolution of the Voting Members.

2.8 Expulsion of Members

(1) A member may be expelled by a resolution of the Directors passed at a Directors' meeting.

(2) The notice of resolution for expulsion must be accompanied by a brief statement of the reasons for the proposed expulsion.

(3) The Directors must elect or appoint a panel of three Directors to investigate the proposed expulsion and make a recommendation to the Board of Directors.

(4) The person who is the subject of the proposed resolution for expulsion must be given an opportunity to be heard by the panel before the resolution is put to a vote.

(5) The Board of Directors may accept or reject the panel's recommendation, as the Board sees fit.

2.9 Cessation of Membership

(1) A person ceases to be a member of the Society:

(a) by delivering their resignation in writing to the Secretary or by mailing or delivering it to the address or the e-mail address of the Society;

(b) on their death;

(c) on being expelled; or

(d) on having been a member not in good standing for a period of 6 months after receiving notice from the Society that the member is not in good standing.

Part 3 – Meetings of Members

3.1 General Meetings

(1) General meetings of the Society must be held at the time and place that the Board determines in accordance with the Act.

(2) Every general meeting, other than an annual general meeting, is a special general meeting.

(3) A special general meeting may be convened by the Board of Directors at such time and place as deemed appropriate by the Board.

(4) A special general meeting may be requested by 10% or more of the Voting Members of the Society by submitting a request to the Society in accordance with the Act.

3.2 Annual General Meetings

(1) The first annual general meeting of the Society must be held in the calendar year following the date of incorporation and after that, an annual general meeting must be held at least once in every calendar year.

3.3 Notices

(1) Notice of a general meeting must specify the place, day, and hour of the meeting and, in case of special business, the general nature of that business.

(2) A notice of a general meeting must state the nature of any business, other than ordinary business, to be transacted at the meeting in sufficient detail to permit a member receiving the notice to form a reasoned judgment concerning that business.

(3) The accidental omission to give notice of a meeting to, or the non-receipt of a notice by, any of the members entitled to receive notice does not invalidate proceedings at that meeting.

Part 4 – Proceedings at General Meetings

4.1 Ordinary Business

(1) At a general meeting, the following business is ordinary business:

(a) adoption of rules of order;

(b) consideration of the financial statements of the Society presented to the meeting;

(c) consideration of the reports, if any, of the Directors or auditor;

(d) election or appointment of directors;

(e) the report of the auditor, if any;

(f) the appointment of the auditor, if required; and

(g) business that is brought under consideration by the report of the Directors that does not require the passing of a special resolution.

4.2 Special Business

(1) Special business is:

(a) all business conducted at a special general meeting except the adoption of rules of order; and

(b) all business conducted at an annual general meeting, except business classified as ordinary business under Section 4.1.

4.3 Quorum

(1) Business, other than the election of the chair of the meeting and the adjournment or termination of the meeting, must not be conducted at a general meeting unless a quorum of Voting Members is present.

(2) The quorum for the transaction of business at a general meeting is the greater of:

(a) three Voting Members; and

(b) 10% of the Voting Members.

(3) If within 30 minutes from the time appointed for a general meeting a quorum is not present, the meeting:

(a) if convened on the requisition of members, must be terminated; or

(b) in any other case, must stand adjourned to the same day in the next week, at the same time and place, and if, at the adjourned meeting, a quorum is not present within 30 minutes from the time appointed for the meeting, the members present constitute a quorum.

(4) If at any time during a general meeting there ceases to be a quorum present, business then in progress must be suspended until there is a quorum present or until the meeting is adjourned or terminated.

4.4 Chair

(1) The following individual is entitled to preside as the chair of a general meeting:

(a) the individual, if any, appointed by the Board to preside as the chair;

(b) if the Board has not appointed an individual to preside as the chair or the individual appointed by the Board is unable to preside as the chair,

(i) the President;

(ii) the Vice-President, if the President is unable to preside as the chair, or

(iii) one of the other directors present at the meeting, if both the President and Vice-President are unable to preside as the chair.

4.5 Adjournment

(1) The chair of a general meeting may, or, if so directed by the Voting Members at the meeting, must, adjourn the meeting from time to time and from place to place, but business must not be conducted at an adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

(2) When a meeting is adjourned for 30 days or more, notice of the adjourned meeting must be given as in the case of the original meeting.

(3) Except as provided in these Bylaws, it is not necessary to give notice of an adjournment or of the business to be conducted at an adjourned general meeting.

4.6 Order of Business at General Meeting

(1) The order of business at a general meeting is as follows:

(a) elect an individual to chair the meeting, if necessary;

(b) determine that there is a quorum;

(c) approve the agenda;

(d) approve the minutes from the last general meeting;

(e) deal with unfinished business from the last general meeting;

(f) if the meeting is an annual general meeting:

(i) receive the directors' report on the financial statements of the Society for the previous financial year, and the auditor's report, if any, on those statements;

(ii) receive any other reports of directors' activities and decisions since the previous annual general meeting;

(iii) elect or appoint directors; and

(iv) appoint an auditor, if any;

(g) deal with new business, including any matters about which notice has been given to the members in the notice of meeting; and

(h) terminate the meeting.

4.7 Voting

(1) A resolution proposed at a meeting need not be seconded, and the chair of a meeting may move or propose a resolution.

(2) Subject to the Act, every motion put to a vote at a general meeting will be decided by a show of hands, an oral vote or another method that adequately discloses the intention of the Voting Members unless a poll or secret ballot, before or after the declaration of the result of the vote, is directed by the chair or demanded by two or more Voting Members.

(3) The chair of a general meeting must announce the outcome of each vote and that outcome must be recorded in the minutes of the meeting.

(4) In the case of a tie vote, the chair of the meeting does not have a casting or second vote in addition to the vote to which he or she may be entitled as a member and the proposed resolution does not pass.

(5) A matter to be decided at a general meeting must be decided by ordinary resolution unless the matter is required by the Act or these Bylaws to be decided by special resolution or by another resolution having a higher voting threshold than the threshold for an ordinary resolution.

(6) Voting by proxy is not permitted.

Part 5– Directors

5.1 Number of Directors

(1) The Board of Directors will be composed of a minimum of three directors and a maximum of 11 directors, with such directors to be elected by the members of the Society in accordance with Section 5.5.

5.2 First Directors

(1) The first directors are the eight persons designated as Directors of the Society in the List of First Directors that applies to the Society when it is recognized under the Act.

5.3 Youth Director

(1) A maximum of one Director of the Society may be an Intermediate Member.

5.4 Term of Directors

(1) Commencing at the second annual general meeting following the date of incorporation of the Society, all directors will be elected for a two-year term expiring at the close of the second annual general meeting after their election, and will be eligible for re-election for an unlimited number of terms.

(2) The Directors will retire from office at the annual general meeting at which their successors are elected, at which point the new directors will take office.

5.5 Election of Directors

(1) Subject to Section 2.7(3), all Voting Members of the Society will be entitled to vote for the election or appointment of directors at a general meeting at which directors are to be elected.

(2) Candidates for election as directors may only be nominated by:

(a) Written notice to the Board delivered at least one month prior to the annual general meeting at which directors are to be elected.

(b) The nomination may be a self-nomination.

(c) The nomination must be signed by at least one other member entitled to vote at a general meeting.

(3) The Board may accept a nomination that is not signed by at least one other member entitled to vote at a general meeting, provided that no other nominations have been received for the vacant position.

(4) The Board will deliver a written notice to the nominated member informing that member of his nomination not later than three weeks prior to the annual general meeting at which directors are to be elected.

(5) The nominated member must give written notice to the Board accepting or rejecting the nomination not later than two weeks prior to the annual general meeting at which directors are to be elected.

(6) There will be no nominations accepted at an annual general meeting of members at which directors are to be elected.

(7) All submitted nominations will be screened by the Board to ensure that such nominees qualify to act as a director under the Act and have such other qualifications with respect to experience, skill, knowledge, and other qualities as the Board may establish from time to time. If a nominee is disqualified, the Board must provide a written explanation to the member as to the qualifications that the nominee did not meet.

5.6 Vacancy on Board

(1) The Board may, at any time, appoint a member as a director to fill a vacancy that arises on the Board as a result of the resignation, removal, death, or incapacity of a Director during the Director's term of office.

(2) A director appointed by the Board to fill a vacancy ceases to be a director at the end of the unexpired portion of the term of office of the individual whose departure from office created the vacancy.

(3) An act or proceeding of the Directors is not invalid merely because there are less than the prescribed number of directors in office.

5.7 Removal of Director

(1) The members may, by special resolution, remove a Director before the expiration of his or her term of office and may elect a successor to complete the term of office.

5.8 Remuneration of Directors

(1) A Director must not be remunerated for being or acting as a director and will not receive, directly or indirectly, any profits as Directors, but a Director may be reimbursed for all expenses necessarily and reasonably incurred by the Director while engaged in the affairs of the Society.

(2) Subject to Act, the Society may pay remuneration to a Director for services provided by the Director to the Society in another capacity.

5.9 Powers of Directors

(1) The Directors may exercise all the powers and do all the acts and things that the Society may exercise and do, and that are not by these Bylaws or by statute or otherwise lawfully directed or required to be exercised or done by the Society in a general meeting, but subject, nevertheless, to:

(a) all laws affecting the Society;

(b) these Bylaws; and

(c) rules, not being inconsistent with these Bylaws, that are made from time to time by the Society in a general meeting.

(2) A rule, made by the Society in a general meeting, does not invalidate a prior act of the Directors that would have been valid if that rule had not been made.

5.10 Signing authority

(1) A contract or other record to be signed by the Society must be signed on behalf of the Society

(a) by the president, together with one other director;

(b) if the president is unable to provide a signature, by the vice-president together with one other director;

(c) if the president and vice-president are both unable to provide signatures, by any 2 other directors; or

(d) in any case, by one or more individuals authorized by the Board to sign the record on behalf of the Society.

Part 6 – Board Positions

6.1 Election or Appointment to Board Positions

(1) Directors must be elected or appointed to the following Board positions, and a director, other than the president, may hold more than one position:

(a) President;

(b) Vice-president;

(c) Secretary;

(d) Treasurer; and

(e) Membership Director.

(2) Directors who are elected or appointed to positions on the Board in addition to the positions described in these Bylaws are elected or appointed as directors at large.

(3) A director who is an Intermediate Member may not hold any Board position as listed in 6.1(1).

6.2 Role of President

(1) The President is the chair of the Board and presides at all general meetings and directors' meetings.

(2) The President is responsible for supervising the other Directors in the execution of their duties.

6.3 Role of Vice-President

(1) The Vice-president is the vice-chair of the Board.

(2) The Vice President is responsible for carrying out the duties of the President if the President is absent or unable to act.

6.4 Role of Secretary

(1) The Secretary is responsible for doing, or making the necessary arrangements for, the following:

(a) issuing notices of general meetings and directors' meetings;

(b) taking minutes of general meetings and directors' meetings, except where the Board appoints another individual to act as secretary at a meeting;

(c) keeping the records of the Society in accordance with the Act;

(d) conducting the correspondence of the Board; and

(e) filing the annual report of the Society and making any other filings with the registrar under the Act.

6.5 Role of Treasurer

(1) The Treasurer is responsible for doing, or making the necessary arrangements for, the following:

(a) receiving and banking monies collected from the members or other sources;

(b) keeping accounting records in respect of the Society's financial transactions;

(c) preparing the Society's financial statements; and

(d) making the Society's filings respecting taxes.

6.6 Role of Membership Director

(1) The Membership Director is responsible for doing, or making the necessary arrangements for, the following:

(a) receiving, reviewing and approving membership applications;

(b) keeping records in respect of the Society's members; and

(c) promoting the Society to new members.

Part 7– Proceedings of Directors

7.1 Meetings of Directors

(1) The Directors may meet together for the conduct of business, adjourn, and otherwise regulate their meetings as they think fit.

(2) A Directors' meeting may be called by the president or by any 2 other directors.

(3) At least 2 days' notice of a directors' meeting must be given unless all the directors agree to a shorter notice period.

(4) The accidental omission to give notice of a Directors' meeting to a Director, or the non-receipt of a notice by a Director, does not invalidate proceedings at the meeting.

(5) Directors may participate in any meeting by telephone conference call or in any manner by which all participants in the meeting can hear one another, and any Director so participating shall be considered to be present for the purposes of quorum and voting at such meeting.

(6) The Directors may from time to time set the quorum necessary to conduct business, and unless so set the quorum is a majority of the Directors then in office.

(7) The President is the chair of all meetings of the Directors, but if at a meeting the President is not present within 30 minutes after the time appointed for holding the meeting, the Vice President must act as chair, but if neither is present, the Directors present may choose one of their number to be the chair at that meeting.

7.2 Voting

(1) Questions arising at a meeting of the Directors and committee of Directors must be decided by a majority of votes.

(2) In the case of a tie vote, the chair does not have a casting or second vote in addition to the vote to which he or she may be entitled as a Director, and the proposed resolution does not pass.

(3) A resolution proposed at a meeting of Directors or committee of Directors need not be seconded, and the chair of a meeting may move or propose a resolution.

(4) A resolution in writing, signed by all the Directors and placed with the minutes of the Directors, is as valid and effective as if regularly passed at a meeting of Directors.

7.3 Committees

(1) The Directors may delegate any, but not all, of their powers to committees consisting of the Director or Directors as they think fit.

(2) A committee so formed in the exercise of the powers so delegated must conform to any rules imposed on it by the Directors, and must report every act or thing done in exercise of those powers to the earliest meeting of the Directors held after the act or thing has been done.

(3) A committee must elect a chair of its meetings, but if no chair is elected, or if at a meeting the chair is not present within 30 minutes after the time appointed for holding the meeting, the Directors present who are members of the committee must choose one of their number to be the chair of the meeting.

(4) The members of a committee may meet and adjourn as they think fit.

Part 8– Notices to Members

(1) A notice may be given to a member personally, by mail, or by any electronic means capable of producing a printed copy, to the member's registered address or e-mail address, or fax number as recorded in the Register of Members.

(2) Any such notice will be deemed to have been given and received by the member to whom it was addressed if personally, on delivery; if mailed, on the third business day following the mailing thereof; or if sent by electronic means, on successful transmission; but if at the time of mailing or between the time of mailing and the third business day thereafter there is a strike, lockout, or other labour disturbance affecting postal service, then the notice will not be effectively given until actually delivered.

(3) Notice of a general meeting must be given to every member shown on the register of members on the day notice is given.

(4) No other person is entitled to receive a notice of a general meeting.

Part 9 – Bylaws

(1) On being admitted to membership, each member is entitled to, and, upon request by a member, the Society must give the member without charge, a copy of the Constitution and Bylaws of the Society.

(2) These Bylaws must not be altered or added to except by special resolution.